

CHAPTER 26.

An Act to amend subsection (1) of section five of the Pensions (Governors of Dominions, &c.) Act, 1911, with respect to service in British Protectorates and other like service. [7th March 1913.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1. For the purposes of subsection (1) of section five of the Pensions (Governors of Dominions, &c.) Act, 1911 (which relates to the reckoning of Governors' service for a civil service pension), service in the permanent Civil Service of the State shall include and shall be deemed always to have included pensionable employment in any permanent office in the government of a British protectorate. Service in permanent Civil Service of State to include service in protectorate for the purpose of 1 & 2 Geo. 5. c. 24. s. 5 (1).

For the purposes of this provision—

The expression "pensionable employment" means employment which qualifies the holder of the office to receive a pension out of the revenues of the protectorate; and

The expression "British protectorate" shall be deemed to include the Malay States.

2. This Act may be cited as the Pensions (Governors of Dominions, &c.) Amendment Act, 1913, and shall be construed as one with the Pensions (Governors of Dominions, &c.) Act, 1911. Short title and construction.

CHAPTER 27.

An Act to apply a sum out of the Consolidated Fund to the service of the year ending on the thirty-first day of March one thousand nine hundred and thirteen, and to appropriate the Supplies granted in this Session of Parliament. [7th March 1913.]

Most Gracious Sovereign,

WE, Your Majesty's most dutiful and loyal subjects, the Commons of the United Kingdom of Great Britain and Ireland in Parliament assembled, towards making good the supply which we have cheerfully granted to Your Majesty in this session of Parliament, have resolved to grant unto Your Majesty the sum herein-after mentioned; and do therefore most humbly beseech Your Majesty that it may be enacted, and be it enacted by the King's most Excellent Majesty, by and with the

advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

GRANT OUT OF CONSOLIDATED FUND.

Issue of
2,618,516*l.*
out of the
Consolidated
Fund.

1. The Treasury may issue out of the Consolidated Fund of the United Kingdom of Great Britain and Ireland, and apply towards making good the supply granted to His Majesty for the service of the year ending on the thirty-first day of March one thousand nine hundred and thirteen, the sum of two million six hundred and eighteen thousand five hundred and sixteen pounds.

APPROPRIATION OF GRANTS.

Appropriation
of sums voted
for supply
services.

2. All sums granted by this Act out of the said Consolidated Fund towards making good the supply granted to His Majesty, amounting, as appears by Schedule (A.), in the aggregate, to the sum of two million six hundred and eighteen thousand five hundred and sixteen pounds are appropriated, and shall be deemed to have been appropriated as from the date of the passing of this Act, for the services and purposes expressed in Schedule (B.) annexed hereto.

The abstract of schedules and schedules annexed hereto, with the notes (if any) to such schedules, shall be deemed to be part of this Act in the same manner as if they had been contained in the body thereof.

54 & 55 Vict.
c. 24.

In addition to the [sums hereby granted out of the Consolidated Fund, there may be applied out of any money directed under section two of the Public Accounts and Charges Act, 1891, to be applied as appropriations in aid of the grants for the services and purposes specified in Schedule (B.) annexed hereto, the sums respectively set forth in the said schedule.

Treasury may,
in certain cases
of exigency,
authorise
expenditure
unprovided
for; provided
that the
aggregate
grants for the
army services
be not ex-
ceeded.

3.—(1) So long as the aggregate expenditure on military services is not made to exceed the aggregate sums appropriated by this Act any surplus arising on any vote for those services, either by an excess of the sum realised on account of appropriations in aid of the vote over the sum which may be applied under this Act as appropriations in aid of that vote, or by saving of expenditure on that vote, may, with the sanction of the Treasury, be temporarily applied either in making up any deficiency in the sums realised on account of appropriations in aid of any other vote in the same department, or in defraying expenditure in the same department which is not provided for in the sums appropriated to the service of the department by this Act, and which it may be detrimental to the public service to postpone until provision can be made for it by Parliament in the usual course.

(2) A statement showing all cases in which the sanction of the Treasury has been given to the temporary application of

a surplus under this section, and showing the circumstances under which the sanction of the Treasury has been given, shall be laid before the House of Commons with the appropriation accounts of the military services for the year, in order that any temporary application of any surplus sanctioned by the Treasury under this section may be submitted for the sanction of Parliament.

4. This Act may be cited for all purposes as the Appropriation (1912-3) Act, 1913. Short title.

A B S T R A C T

OF

SCHEDULES (A.) and (B.) to which this Act refers.

SCHEDULE (A.)

Grant out of the Consolidated Fund	-	-	-	£	s.	d.
				2,618,516	0	0

SCHEDULE (B.)—APPROPRIATION OF GRANTS.

				Sums not exceeding	
				Supply Grants.	Appropriations in Aid.
1912-1913.				£	£
Part 1	{	Army (Supplementary)	- - -	248,000	100,000
		Army Ordnance Factories (Supplementary)	- - -	100	120,000
„ 2		Civil Services (Supplementary)	- - -	2,370,416	19,270
Total				2,618,516	239,270

SCHEDULE (A.)

GRANT OUT OF THE CONSOLIDATED FUND.

	£	s.	d.
For the Service of the Year ending on the 31st day of March 1913	2,618,516	0	0

SCHEDULE
(B.)
Part 1.

SCHEDULE (B.)—APPROPRIATION OF GRANTS.—PART 1.

ARMY (SUPPLEMENTARY) 1912-1913.

Army (Sup-
plementary)
1912-1913.

SUM granted to meet additional Expenditure in respect of the following
Army Services for the year ending on the 31st day of March 1913,
viz. :—

	£
Vote 1.—Pay, &c. of the Army	215,000
„ 6.—Quartering, Transport, and Remounts	68,000
„ 7.—Supplies and Clothing	95,000
„ 8.—Ordnance Department Establishments and General Stores	45,000
	423,000

Less Surplus on Vote 10 (Works and Buildings) - 75,000

	£
Appropriations in Aid	100,000
Supply Grant	£248,000

ARMY (ORDNANCE FACTORIES) SUPPLEMENTARY, 1912-1913.

	Sums not exceeding	
	Supply Grants.	Appropriations in Aid.
	£	
Sums granted to meet additional Expendi- ture for Army Ordnance Factories for the year ending on the 31st day of March 1913	100	120,000

SCHEDULE (B.)—PART 2.

SCHEDULE
(B.)
Part 2.

CIVIL SERVICES (SUPPLEMENTARY) 1912-1913.

SCHEDULE of Supplementary Sums granted to defray the charges for the Services herein particularly mentioned for the Year ending on the 31st day of March 1913, viz. :—

Civil Service :
(Supplemen-
tary)
1912-1913.

	Sums not exceeding	
	Supply Grants.	Appropriations in Aid.
CIVIL SERVICE.	£	£
CLASS II.		
For the Salaries and Expenses of the Office of the Committee of Privy Council for Trade and Subordinate Departments -	16,000	2,000
For the Salaries and Expenses of the Board of Agriculture and Fisheries, and of Royal Botanic Gardens, Kew, including certain Grants in Aid -	63,572	25,130
For the Salaries and Expenses of the Registry of Friendly Societies -	2,136	—
For Stationery, Printing, Paper, Binding, and Printed Books for the Public Service; for the Salaries and Expenses of the Stationery Office; and for Sundry Miscellaneous Services, including Reports of Parliamentary Debates -	162,000	15,000
For the Salaries and Expenses of the Office of the Commissioners of His Majesty's Works and Public Buildings -	4,400	—
For the Salaries and Expenses of the Department of Agriculture and other Industries and Technical Instruction for Ireland, and of the services administered by that Department, including sundry Grants in Aid -	38,000	1,000
CLASS III.		
For certain Miscellaneous Legal Expenses	5,200	—
For the Salaries of the Office of Public Trustee -	10	990
For the Salaries and Expenses connected with the County Courts -	8,500	* — 24,850
For the Maintenance of Criminal Lunatics in the Dundrum Criminal Lunatic Asylum, Ireland -	180	—

* Deficit.

SCHEDULE
(B.)
Part 2.

Civil Services
(Supplemen-
tary)
1912-1913.

	Sums not exceeding	
	Supply Grants.	Appropriations in Aid.
CLASS V.	£	£
For Sundry Colonial Services, including certain Grants in Aid - - -	18,000	—
For making good the Net Loss on Transac- tions connected with the raising of Money for the various Treasury Chests Abroad in the year 1911-12 - - -	47,418	—
CLASS VII.		
For providing for an Increase in the Capital of the Civil Contingencies Fund -	180,000	—
CLASS VIII.		
For Grants in Aid of National Health Insurance (United Kingdom), in addition to the sums payable under section 3 of the National Insurance Act, 1911 -	1,825,000	—
Total - - - £	2,370,416	19,270

CHAPTER 28.

An Act to amend the Sheriff Courts (Scotland) Act,
1907. [7th March 1913.]

BE it enacted by the King's most Excellent Majesty, by and
with the advice and consent of the Lords Spiritual and
Temporal, and Commons, in this present Parliament assembled,
and by the authority of the same, as follows :

Repeal of
certain sec-
tions of the
principal Act.
7 Edw. 7. c. 51.

1. Section nine, section twenty-eight, and section thirty-two
of the Sheriff Courts (Scotland) Act, 1907 (herein-after referred
to as the principal Act), are hereby repealed.

2. In lieu of section twenty-eight, there shall be inserted in
the principal Act the following section :—

Appeal to
Court of
Session.

“28.—(1) Subject to the provisions of this Act, it shall
be competent to appeal to the Court of Session against
a judgment either of a sheriff, or of a sheriff-substitute if
the interlocutor appealed against is a final judgment or
is an interlocutor—